



CHAPTER iv.

An Act to confer further powers upon the South Metropolitan Cemetery Company and for other purposes. A.D. 1914.
[30th April 1914.]

WHEREAS the South Metropolitan Cemetery Company (in this Act called "the Company") were incorporated in the year one thousand eight hundred and thirty-six by an Act 6 & 7 King William IV. chapter CXXIX. intituled "An Act for establishing a Cemetery for the interment of the dead southward of the Metropolis to be called 'The South Metropolitan Cemetery'" (hereinafter referred to as "the Act of 1836") with a share capital of seventy-five thousand pounds and with power in the event of that sum being insufficient for the purposes of the said Act then and in such case to borrow on mortgage of their undertaking twenty-five thousand pounds:

And whereas the Company have raised and expended on their undertaking seventy-two thousand five hundred pounds but have not created any mortgages and it is expedient that the restriction aforesaid on such creation be repealed and the provisions of the Act of 1836 amended in that and other respects as hereinafter provided:

And whereas it is expedient that the Company should be empowered to erect and maintain a crematorium for the cremation of human remains:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

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A.D. 1914. — with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1. This Act may be cited as the South Metropolitan Cemetery Company Act 1914. The Act of 1836 may be cited as the South Metropolitan Cemetery Company Act 1836. The Act of 1836 and this Act may be cited together as the South Metropolitan Cemetery Company's Acts 1836 and 1914.

Power to
establish a
crema-
torium.

2.—(1) The Company may set apart a site for and build provide fit up equip and maintain a crematorium proper and sufficient for the cremation of human remains on the following lands (that is to say):—

A piece of land containing two thousand one hundred and four superficial feet six inches or thereabouts in the South Metropolitan Cemetery in the parish of Lambeth and county of Surrey belonging or reputed to belong to the Company and situate immediately on and adjoining the south-west side of the Nonconformist chapel and one hundred and sixty-five feet or thereabouts measured in a northerly direction from the south-east corner of the Episcopal chapel in the said cemetery.

(2)—(A) No cremation of human remains shall take place in any crematorium of the Company until the plans of such crematorium have been approved of by the Local Government Board and it shall have been certified by the Company to the Secretary of State that such crematorium has been completed is built in accordance with such plans and is properly equipped for the purpose of the disposal of human remains by burning.

(B) Every cremation of human remains in any crematorium of the Company shall take place in accordance with the provisions of sections 7 8 and 10 of the Cremation Act 1902 and any regulations made under those sections.

(3) The Company may demand and take such reasonable charges or fees for the cremation of any human remains in such crematorium as they think fit and such charges or fees shall be deemed to be a debt due to the Company from the estate of the deceased.

(4) For the purposes of section 18 (Company to pay a fee on interment of persons removed from certain parishes) of the

Act of 1836 the fee payable to the incumbent under that section A.D. 1914.
in respect of the permanent interment within the consecrated
part of the South Metropolitan Cemetery of the ashes of any
person cremated at the crematorium of the Company shall be
seven shillings and sixpence.

(5) The Company may apply to the purposes of this section
any funds or moneys which they now have or may hereafter
have in their hands or any moneys which they have power to
raise by shares or by mortgage and which may not be required
for the purposes for which the same were authorised to be
raised or borrowed.

3. The following sections of the Act of 1836 are hereby
repealed (that is to say):—

Repeal of
certain sec-
tions of Act
of 1836.

Section 70 (The general meeting to be held in July 1838
to choose directors).

Section 71 (Service of directors).

Section 72 (Auditors to be appointed).

Section 73 (Service of auditors).

Section 79 (General meeting to appoint a treasurer and
a clerk).

Section 80 (Clerk not to be treasurer and vice versâ).

Section 91 (Directors may appoint temporary treasurer
or clerk).

Section 100 (Treasurer not to pay any money without
an order).

Section 115 (For compelling witnesses to attend).

Section 116 (Directors &c. empowered to grant releases
to witnesses).

Section 117 (Costs may be recovered by distress on
goods of the Company).

Section 118 (Proprietors may be witnesses).

Section 119 (Recovery and application of penalties).

Section 120 (Damages and charges in case of dispute to
be settled by justices).

Section 121 (Justices may proceed by summons for
recovery of penalties).

Section 122 (For securing offenders whose names and
places of abode are unknown).

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- Section 123 (Forms of information and conviction).
Section 124 (Distress not unlawful for want of form).
Section 125 (Persons aggrieved may appeal to the quarter sessions).
Section 127 (Proceedings not to be quashed for want of form).
Section 128 (Limitation of actions).
Section 129 (Plaintiff not to recover after tender of amends).
Section 130 (General power to justices to administer oaths).
Section 131 (Power to justice to mitigate penalties).
Section 132 (Punishment of persons giving false evidence).
Section 133 (Persons making false declaration to be guilty of a misdemeanor).

Number
rotation and
quorum of
directors.

4. From and after the first annual general meeting of the Company after the passing of this Act the number of directors shall be eight but the Company may at that or any subsequent annual general meeting after due notice for that purpose vary the number of directors but so that the number be not at any time more than eight nor less than five and may also determine the remuneration and the qualification of the directors the order of rotation in which they shall go out of office and notwithstanding anything in section 87 (First and other meetings of the directors) of the Act of 1836 contained what number shall constitute a quorum at meetings of the directors.

Auditors to
be appointed.

5. At the first annual general meeting of the Company after the passing of this Act two persons who shall be proprietors and respectively possessed of not less than twenty shares in the capital of the Company (in this Act called "the proprietor auditors") and an auditor (being a chartered or incorporated accountant) (in this Act called "the professional auditor") shall be elected and appointed auditors of the Company.

Retirement
of auditors.

6. At the second annual general meeting of the Company after the passing of this Act one of the proprietor auditors (to be determined by lot or otherwise by them) and the professional auditor shall go out of office and cease to be auditors of the

Company and persons qualified as aforesaid shall be elected auditors in their place At the succeeding annual general meeting of the Company the one remaining of the proprietor auditors elected at the previous annual general meeting and the professional auditor shall go out of office and cease to be auditors of the Company and their place shall be supplied in like manner At the annual general meeting of the Company to be held in any subsequent year one of the proprietor auditors who shall have been longest in office and the professional auditor shall go out of office and cease to be auditors of the Company and their place shall be supplied in like manner.

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7. The Act of 1836 is hereby amended as follows and shall from and after the passing of this Act have effect as so amended (that is to say):—

Amendment
of Act of
1836.

Section 43 (Treasurer upon payment of money to give receipts which shall be sufficient indemnity) shall be read as if for the word "treasurer" the word "clerk" were substituted:

Section 52 (Power to raise money by mortgage) shall be read as if the words "if the money hereby authorised to be raised shall be found insufficient for the purposes of this Act then and in such case" were omitted therefrom:

Section 60 (Regulations as to general meetings) shall be read as if for the word "fifteen" wherever appearing therein the word "seven" were substituted:

Section 62 (Notice of meetings how to be given) shall be read as if for the words "shall be given by advertisements inserted in some three or more of the London newspapers and such notices when so published and given shall be deemed and considered the same as if personally served" the words "delivered personally or by post at the address of the proprietor as last appearing in the register of proprietors of the Company" were substituted:

Section 77 (If any director or auditor become disqualified his office to be vacant) shall be read as if for the words "any auditor" the words "either of the proprietor auditors" were substituted:

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Section 85 (Powers of directors) shall be read as if the words “(except the treasurer and clerk hereinbefore directed to be appointed by a general meeting of the said Company)” were omitted therefrom:

Section 87 (First and other meetings of the directors) shall be read as if for the word “five” wherever appearing therein the word “three” were substituted:

Section 96 (Directors to cause accounts to be made up annually) shall be read as if the words “or treasurer” were omitted therefrom:

Section 98 (Duties of auditors) shall be read as if for the words “treasurer and clerks” the word “clerk” were substituted:

Section 101 (Officers to account) shall be read as if the words “treasurer of the said” were omitted therefrom:

Section 103 (If calls are not paid interest to be charged thereon If interest and principal are not paid within two months the directors may sue for the same or may declare the shares forfeited and direct them to be sold) shall be read as if the words “or treasurer” were omitted therefrom:

Section 106 (Receipt of any one of several proprietors of shares to be a sufficient discharge) shall be read as if the words “and treasurers” were omitted therefrom:

Section 108 (No shares to be sold after a call made until the same is paid) shall be read as if the words “the treasurer of the said Company or to” were omitted therefrom:

Section 109 (For ascertaining the proprietorship of shares in order to the recovery of calls &c.) shall be read as if the words “or treasurer” were omitted therefrom:

Section 112 (Preventing nuisances in the cemetery) shall be read as if the words “or cremating” were inserted after the word “interring”:

Section 113 (Declaring what shall be good service of notice on the Company) shall be read as if the words “or treasurer” wherever appearing were omitted therefrom:

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Section 114 (Declaring what shall be good service of notice A.D. 1914.
by the Company) shall be read as if the words “or by
the treasurer of the said Company” were omitted
therefrom.

8. All costs charges and expenses of and incident to the Costs of Act.
preparing for obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Company.

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